

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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EARNELL CHISOLM,

Plaintiff,

-against-

SUMMONSTHE CITY OF NEW YORK, POLICE OFFICER SEAN
WALSH, Shield No. 7614, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Defendants.

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 22, 2019

Yours, etc.

/s/CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER SEAN WALSH, Shield No. 7614, NYPD 75th Precinct, 1000
Sutter Avenue, Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

EARNELL CHISOLM,

INDEX NO.:

Plaintiff, VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER SEAN
WALSH, Shield No. 7614, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff EARNELL CHISOLM, by his attorneys, Caitlin Robin & Associates, PLLC, as
and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 4, 2019, at approximately 9:00 p.m., plaintiff Earnell Chisolm, while lawfully in the vicinity of New Lots Avenue and Miller Avenue, Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff was subjected to an assault, battery, and use of excessive force by the defendant officers when the defendant police officer forcibly grabbed Plaintiff and tackled him to the ground, kicked, punched, and hit him with a baton, causing him to suffer physical injuries. Plaintiff was then unlawfully imprisoned at the 7th Precinct Police Station and Kings Central Booking for approximately 30 hours until plaintiff was arraigned in Criminal Court, charged with crimes he did not commit, and released on his own recognizance. Plaintiff was denied the right to due process and a fair trial until the resisting arrest charges against plaintiff were dismissed on July 5, 2019. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, assaulted, battered, subjected to excessive force, falsely arrested, falsely imprisoned, denied access to medical care, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth

Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff EARNELL CHISOLM a resident of the state of New York.
3. POLICE OFFICER SEAN WALSH, Shield No. 7614, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER SEAN WALSH, Shield No. 7614, was at all times relevant herein, assigned to TD11.
5. POLICE OFFICER SEAN WALSH, Shield No. 7614, is being sued in his individual and official capacity.
6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. Police Officers John Does #1-10 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

11. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H December 17, 2019.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On July 4, 2019, at approximately 9:00 p.m., plaintiff was lawfully present in the vicinity of New Lots Avenue and Miller Avenue, Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, frisked, and falsely arrested plaintiff without probable cause or legal justification.

16. Plaintiff was on his way home after watching fireworks on July 4, 2019.

17. Plaintiff was walking on Miller Avenue to his mom's house at 695 Vermont Street, when a Defendant Officer told him to "get out of the street."

18. Plaintiff obeyed the Defendant Officers orders and went to the sidewalk.

19. Another Defendant Officer then said, "Go home, get off the sidewalk" to Plaintiff.

20. Plaintiff was then immediately grabbed, and thrown to the ground by multiple defendant officers for no legal reason.

21. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse plaintiff committing a crime or violating the law in any way.

22. Nevertheless, plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

23. Defendant Officers then hit Plaintiff with a baton, punched Plaintiff, and kicked plaintiff, causing physical injuries included but not limited to a cut lip, bleeding on his face, a fractured finger, and abrasions.

24. Defendant Officers then pepper sprayed Plaintiff, causing physical injury.

25. At no point did Plaintiff resist arrest.

26. At no point did defendants recover any drugs, weapons, or other illegal contraband from plaintiff or from a location that was in plaintiff's possession, custody or control.

27. Defendants picked Plaintiff up off the ground, handcuffed, bleeding, and injured, and transported plaintiff to the 75 Precinct police station against his will, where plaintiff was unlawfully photographed, fingerprinted and detained in a holding cell.

28. Plaintiff was then transported from the 75th Precinct Precinct to Brookdale Medical Center.

29. Plaintiff was treated at Brookdale Medical Center for a sprained shoulder, a fractured finger, contusions on his body, and abrasions to his neck.

30. Plaintiff was then transported from Brookdale back to the 75th Precinct, and then eventually to Kings County Central Bookings.

31. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff committed a crime.

32. Specifically, the defendant police officers falsely stated to the District Attorney's Office that plaintiff was engaged in obstructing governmental administration and disorderly conduct.

33. On July 5, 2019, at approximately 11:00 p.m., after 30 hours in unlawful custody, plaintiff was arraigned in Kings County Criminal Court, charged with crimes that the defendant officers had no basis to allege that he committed and was released from custody.

34. Thereafter, on or about July 2019 all criminal charges against plaintiff were dismissed.

35. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting and imprisoning, and denying plaintiff the right to due process and a fair trial

36. The unlawful, search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of plaintiff's right to a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

39. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

42. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

45. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

48. The conduct of defendants in stopping, frisking, and searching plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

49. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

54. Defendants lacked probable cause to search plaintiff.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein

60. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

61. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

62. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

63. In withholding/creating false evidence against plaintiff EARNELL CHISOLM, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United

States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

64. As a result of the foregoing, plaintiff EARNELL CHISOLM, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligence

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants owed a duty of care to plaintiff.

70. To the extent defendants claim that the injuries to plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by smashing his face into the ground, fracturing his finger and assaulting him.

71. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

72. All of the foregoing occurred without any fault or provocation by plaintiff.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The use of excessive force by defendants by, amongst other things, by assaulting plaintiff with a baton, constituted objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

78. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Assault

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

81. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Battery

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner threw plaintiff to the ground, hit him with a baton, punched, kicked, and pepper sprayed him with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

87. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

93. Defendants commenced and continued a criminal proceeding against plaintiff.

94. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

95. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

96. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

97. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

98. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

99. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

100. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, EARNELL CHISOLM. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

102. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

103. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

104. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

105. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

107. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 106 with the same force and effect as if more fully set forth at length herein.

108. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

109. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Failure to Intervene

110. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

112. Defendants failed to intervene to prevent the unlawful conduct described herein.

113. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

114. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

115. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

116. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

118. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff EARNELL CHISOLM demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 20, 2019

By: /s/

CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004

(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER SEAN WALSH, Shield No. 7614, NYPD 75th Precinct, 1000
Sutter Avenue, Brooklyn, NY 11208

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 26, 2019

_____/s/_____
CAITLIN ROBIN